Cyber Crime in India (2026): Complete Guide

Expert legal guidance and comprehensive legal solutions

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□ Quick Answer (2026)

Cyber crime in India is governed primarily by:

- **Information Technology Act 2000 (amended 2008)**
- **Digital Personal Data Protection Act 2023**
- **Bharatiya Nyaya Sanhita 2023 (BNS)**

Reporting:

- General cyber crimes → cybercrime.gov.in
- Financial fraud → Call **1930** immediately

Punishments: Range from **3 months to 7 years imprisonment**, plus fines or corporate penalties up to ₹250 crore.

□ **Emergency Tip:** If defrauded online (UPI, banking, OTP fraud), call **1930 immediately** — early reporting can freeze the fraudster's account before withdrawal.

□ What Is Cyber Crime in India?

Cyber crime refers to criminal activities involving computers, networks, or digital devices. Categories:

- **Crimes against persons:** Cyberstalking, cyberbullying, harassment, revenge porn, sextortion, deepfake

- **Crimes against property:** Hacking, data theft, phishing, fraud, identity theft, ransomware
- **Crimes against government/society:** Cyber terrorism, spreading fake news, sedition via social media

 India reported **1.5 million+ cyber crime cases in 2023** (NCRB), with financial fraud being the majority.

Types of Cyber Crimes & Laws

Cyber Crime	Applicable Law	Max Punishment
Hacking	IT Act §66	3 yrs + ₹5L fine
Identity Theft	IT Act §66C, §66D	3 yrs + ₹1L fine
Financial Fraud	IT Act §66D + BNS §318	3–7 yrs + fine
Cyberbullying	IT Act §67, BNS §351	3–5 yrs + fine
Deepfake	IT Act §66E, §67A	3–5 yrs + fine
Defamation	BNS §356	2 yrs + fine
Child Pornography	IT Act §67B + POCSO	7 yrs + fine
Data Breach	DPDP Act 2023	₹250 crore penalty

IT Act 2000 & Amendment 2008

Key provisions:

- **§43:** Damage to computer systems → civil compensation up to ₹1 crore
- **§66:** Hacking → 3 yrs / ₹5L fine
- **§66C:** Identity theft → 3 yrs / ₹1L fine
- **§66D:** Cheating by impersonation → 3 yrs / ₹1L fine
- **§66E:** Privacy violation → 3 yrs / ₹2L fine
- **§67:** Publishing obscene material → 3–5 yrs + fine
- **§67A:** Sexually explicit material → 5–7 yrs + fine
- **§67B:** Child pornography → 5–7 yrs + fine
- **§72:** Breach of confidentiality → 2 yrs / ₹1L fine

Digital Personal Data Protection Act 2023

- Applies to all entities processing Indian residents' digital personal data
- **Consent:** Explicit, informed consent required
- **Rights:** Access, correction, erasure, grievance redressal
- **Children's Data:** Parental consent mandatory; no tracking/ads
- **Data Breach:** Mandatory reporting to Data Protection Board
- **Penalties:** Up to ₹250 crore for child data violations

Filing a Cyber Crime Complaint

1. Collect evidence (screenshots, IDs, logs, URLs, timestamps)

2. Visit **cybercrime.gov.in** → "Report Cyber Crime"
3. Fill complaint form + upload evidence (JPG/PNG/PDF ≤ 5MB)
4. Receive complaint ID via SMS
5. File FIR at police station for serious cases (mandatory for cognizable offences)
6. Track complaint status online

□ 1930 Cyber Crime Helpline (Financial Fraud)

- For UPI, banking, OTP fraud, marketplace scams
- **Act within 30 minutes** for best chance of freezing funds
- Operates 24×7 under I4C, Ministry of Home Affairs
- Must file formal complaint at cybercrime.gov.in within 48 hrs

□ Online Defamation & Social Media Laws

- **Defamation (BNS §356):** Up to 2 yrs + fine
- Must be false, published, and injurious to reputation
- Truth, opinion, satire, fair comment are defences
- Platforms must remove unlawful content within 36 hrs
- Large platforms (500K+ users) must appoint Grievance Officer

□ Deepfake & AI Crime Laws

- No dedicated law yet, but covered under IT Act & BNS
- **§66E:** Privacy violation → 3 yrs + ₹2L fine
- **§67A:** Sexually explicit deepfakes → 5 yrs + fine
- **BNS §356:** Defamation → 2 yrs + fine
- **BNS §318:** Fraud via deepfake → up to 7 yrs
- Platforms must remove deepfakes within 24 hrs

□ Punishment Summary

- Cyberbullying/Stalking → 3–5 yrs
- Social media hacking → 3 yrs / ₹5L fine
- Cyberbullying minors → Up to 7 yrs
- Financial fraud → Up to 7 yrs
- Corporate data breach → Up to ₹250 crore penalty